



## CHAPTER xix

An Act to extend the boundaries of the city of Carlisle  
and for other purposes. [12th July 1950.]

**W**HEREAS the city of Carlisle is a county borough under the government of the mayor aldermen and citizens of the city of Carlisle:

And whereas the unrepealed provisions of the local Acts specified in Part I of the schedule to this Act and of the Orders specified in Part II of that schedule are in force in the city:

And whereas the parishes of Beaumont Cummersdale Kingmoor Saint Cuthbert Without Stanwix and Wetheral in the rural district of Border are respectively situated in the administrative county of Cumberland and adjoin the city:

And whereas it is expedient to alter and extend the boundaries of the city so as to include therein parts of the said parishes:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed: 23 & 24 Geo. 5.  
c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

*Preliminary*

1.—(1) This Act may be cited as the Carlisle Extension Act 1950. Short and collective titles.



(2) The local Acts as defined in the next following section and this Act may be jointly cited as the Carlisle Corporation Acts 1804 to 1950.

**Interpretation.** 2.—(1) In this Act unless the subject or context otherwise requires—

“ The Act of 1933 ” means the Local Government Act 1933 ;

“ The added areas ” means the added parts of Beaumont Cummersdale Kingmoor Saint Cuthbert Without Stanwix and Wetheral all in the rural district ;

“ The added part of Beaumont ” “ the added part of Cummersdale ” “ the added part of Kingmoor ” “ the added part of Saint Cuthbert Without ” “ the added part of Stanwix ” and “ the added part of Wetheral ” mean respectively the parts of the existing parishes which are respectively included within the inner edge of the red line on the city map and “ the excluded part of Beaumont ” “ the excluded part of Cummersdale ” “ the excluded part of Kingmoor ” “ the excluded part of Saint Cuthbert Without ” “ the excluded part of Stanwix ” and “ the excluded part of Wetheral ” mean the remaining parts of those parishes respectively ;

“ The appointed day ” means the first day of April nineteen hundred and fifty-one ;

“ The city ” means before the appointed day the existing city of Carlisle and on and after the appointed day the city as extended by this Act ;

“ The city map ” means the map signed in triplicate by the Right Honourable the Earl of Drogheda the chairman of the committee of the House of Lords to which the Bill for this Act was referred one copy of which map has been deposited in the office of the Clerk of the Parliaments House of Lords one in the Private Bill Office of the House of Commons and one with the town clerk at his office ;

“ The Corporation ” means the mayor aldermen and citizens of the city of Carlisle ;

“ The council ” means the council of the city ;

“ The county ” means the administrative county of Cumberland and “ the county council ” means the county council of the county ;

“ Electoral area ” means any electoral division ward district parish or other area for which an election of councillors is held under the Act of 1933 ;

“ Existing ” in relation to any area altered by this Act means existing immediately before the appointed day ;



“ The existing parishes ” means the existing parishes of Beaumont Cummersdale Kingmoor Saint Cuthbert Without Stanwix and Wetheral all in the rural district ;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the city ;

“ The local Acts ” means the local Acts specified in Part I of the schedule to this Act and the Orders specified in Part II of that schedule and so much of the confirmation Acts specified in that Part as relates to those Orders ;

“ The Minister ” means the Minister of Health ;

“ The parish councils ” means the parish councils of the existing parishes ;

“ Provisional Order ” includes any Order having the effect of an Act of Parliament ;

“ Revenues of the Corporation ” includes all such funds rates contributions and revenues receivable by the Corporation as are mentioned in section 218 of the Act of 1933 ;

“ The rural district ” and “ the rural council ” mean respectively the rural district of Border and the rural district council of that district ;

“ The town clerk ” means the town clerk of the city.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by virtue of any subsequent enactment including this Act.

3. Save as otherwise expressly provided and except so far as Commence- there may be anything in the subject-matter or context incon- ment of Act. sistent therewith this Act shall come into operation on the appointed day :

Provided that for the purposes of—

(a) the compilation alteration or rearrangement of any register of electors made under the Representation of the People Acts ;

(b) the qualification of candidates for election on or after the appointed day to the office of alderman or councillor of the city ;

(c) any election to be held on or after the appointed day for any area affected by this Act and all proceedings preliminary or relating thereto ; and

(d) the preparation of any precept or contribution order to be issued or made in respect of any period commencing on or after the appointed day ;

this Act shall operate from the date of its passing.



City map.

4.—(1) Copies of the city map certified by the town clerk to be true shall be sent by him as soon as may be after the passing of this Act to the clerk of the county council to the clerk to the rural council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Ministers of Health Transport Agriculture and Fisheries Fuel and Power and Town and Country Planning respectively to the Postmaster-General and to the Boundary Commission for England.

(2) Copies of or extracts from the city map certified by the town clerk to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of such map so far as it relates to the boundary of any area altered by this Act.

(3) The city map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the city and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(4) All fees so received shall be carried to the general rate fund.

#### *Extension of city*

Extension of  
city.

5.—(1) The boundary of the existing city the area whereof is included within the outer edge of the blue line on the city map shall be altered so as to include in addition to that area so much of the rural district as comprises the added parts of Beaumont Cummersdale Kingmoor Saint Cuthbert Without Stanwix and Wetheral.

(2) The boundary of the city shall be that shown by the inner edge of the red line on the city map and the whole of the area within that boundary shall for all purposes be the city and the county borough of Carlisle.

Alteration of  
parishes.

6.—(1) The added areas shall be added to and form part of the parish of Carlisle.

(2) The excluded part of Beaumont the excluded part of Cummersdale the excluded part of Kingmoor the excluded part of Saint Cuthbert Without the excluded part of Stanwix and the excluded part of Wetheral shall respectively form the parishes of Beaumont Cummersdale Kingmoor Saint Cuthbert Without Stanwix and Wetheral.

#### *Councillors and other members of local authorities*

Existing mayor  
aldermen and  
councillors.

7. The persons who hold office immediately before the appointed day as mayor aldermen and councillors of the existing city shall on the appointed day become the mayor aldermen and



councillors of the city but shall respectively retire from office on the day on which they would have retired from office if this Act had not been passed.

8.—(1) This section shall come into operation on the date of the passing of this Act but any scheme or Order in Council made under the provisions hereinafter mentioned as applied by this section shall not take effect until the appointed day except for the purposes of any election of councillors which may be required by such scheme or Order in Council.

(2) The council shall not later than the first day of October nineteen hundred and fifty or such later date as the Secretary of State may allow present a petition under and in accordance with the provisions of section 25 of the Act of 1933 praying for any one or more of the things mentioned in paragraphs (b) (c) (d) and (e) of subsection (1) of that section.

(3) Failing presentation by the council of a petition under subsection (2) of this section section 25 of the Act of 1933 shall have effect as if a petition praying for an alteration of the boundaries of the wards of the city had been presented by the council to His Majesty and the requirements of subsection (1) of the said section 25 had been complied with and the petition stood referred to the Secretary of State.

(4) Any Order in Council made under the said provisions as applied by this section may be altered or varied by a subsequent Order in Council made on the application of the council by petition under the provisions of section 25 of the Act of 1933.

(5) For the purposes of this section the provisions of this Act altering the boundaries of the city shall be deemed to have come into operation on the date of the passing of this Act.

9. For the purposes of the application to the city of the provisions of paragraph (c) of section 57 of the Act of 1933 the added areas shall be deemed always to have formed part of the city.

10. The added areas shall be separated from the electoral divisions of the county of which they respectively form part and the councillors of the county who immediately before the appointed day represent the said electoral divisions shall be deemed to have been elected to represent those divisions respectively as altered by this Act and shall retire on the day on which they would have retired respectively if this Act had not been passed.

11. Subject to the provisions of this Act—

(a) the persons who immediately before the appointed day are the rural district councillors for the existing

District  
councillors and  
continuance  
of rural  
council.



parishes or wards of parishes shall continue to represent those parishes or wards of parishes respectively as altered by this Act on the rural council until the day upon which they would have gone out of office respectively if this Act had not been passed ;

- (b) the rural council shall continue and shall be deemed to have been elected for and shall be the rural district council for the rural district as altered by this Act.

Parish councils  
and parish  
councillors.

**12.** Subject to the provisions of this Act—

- (a) the parish councils of the existing parishes shall be the parish councils of those parishes as respectively altered by this Act ;
- (b) any person immediately before the appointed day in office as a parish councillor for any of the existing parishes or wards of parishes shall on the appointed day become a parish councillor for that parish or parochial ward as altered by this Act but shall retire from office on the day on which he would have retired from office if this Act had not been passed.

Casual  
vacancies.

**13.** Any casual vacancy which may exist on the appointed day in the office of borough councillor county councillor rural district councillor or parish councillor for any electoral area which by virtue of this Act is altered shall be deemed to exist in the office of councillor for the electoral area as altered.

*Powers property liabilities &c. of existing authorities*

Corporation  
property  
liabilities &c.

**14.** Subject to the provisions of this Act all property immediately before the appointed day vested in the Corporation for the benefit of the existing city (not being property held on any charitable trust) shall by virtue of this Act be held by the Corporation for the benefit of the city and the Corporation shall hold enjoy and exercise for the benefit of the city all the powers which immediately before that day are exercisable by or vested in the Corporation for the benefit of the existing city and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing city shall on that day attach to them in respect of the city.

Debts of  
Corporation.

**15.** So much of any sums borrowed by the Corporation or by their predecessors as immediately before the appointed day is owing and charged upon a fund or rate of the existing city or the revenues of the Corporation of the existing city shall be charged upon the revenues of the Corporation and all interest due on any such moneys outstanding at any time shall be paid out of the revenues of the Corporation.



**16.** Subject to the provisions of this Act and to any necessary adjustment— Debts of  
county and  
rural councils.

- (1) the liability for the repayment of so much of any moneys borrowed by the county council by the rural council or by the parish councils or their respective predecessors for a purpose relating exclusively to any part of the added areas as immediately before the appointed day is owing and for the payment of interest thereon shall by virtue of this Act be transferred to and attach to the Corporation and shall be a matter for adjustment under this Act ;
- (2) so much of any moneys borrowed as aforesaid as immediately before the appointed day is owing together with so much of any moneys borrowed by the Corporation as is immediately before the appointed day owing and charged upon the revenues of the Corporation of the existing city shall by virtue of this Act be charged upon the revenues of the Corporation ;
- (3) nothing in this Act shall prejudice or affect the validity of any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which is transferred to the Corporation by paragraph (1) of this section or prejudice or diminish the powers of any person entitled under any such mortgage or other security to enforce the same as if this Act had not been passed and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Act the power may continue to be exercised as if this Act had not been passed and the general rate shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Act had not been passed.

**17.** The county council the standing joint committee of the county the rural council (except as provided in section 32 (Contribution orders precepts and arrears of rates) of this Act) and the parish councils shall cease to exercise any powers or discharge any duties within any part of the added areas and any powers and duties of the parish councils or any of them so far as they relate to or affect the added areas shall be vested in the Corporation other than the powers contained in the Cumberland Powers of  
county rural  
and parish  
councils.  
  
11 & 12 Geo. 6.  
c. xliii. County Council Act 1948.

**18.** Subject to the provisions of this Act and to any necessary adjustments— Property &c.  
of rural  
council and  
parish councils.

(a) any property or liabilities which immediately before the appointed day is or are vested in or attach to the rural



council or any of the parish councils in relation exclusively to any part of the added areas shall by virtue of this Act be transferred to and vest in or attach to the Corporation and shall be a matter for adjustment under this Act ;

- (b) any property or liabilities which immediately before the appointed day is or are vested in or attach to any of the said councils in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under this Act.

*Administration of justice and county administration*

Jurisdiction of  
city justices  
coroner &c.  
extended.

**19.**—(1) The powers and duties of the quarter sessions recorder clerk of the peace coroner and justices of the peace for the existing city and of the clerk to those justices and of the police constables and other peace officers of the existing city shall extend to and apply throughout the city :

Provided that—

- (a) every person alleged to have committed an offence in any part of the added areas before the appointed day shall be tried and dealt with as if this Act had not been passed ;
- (b) any proceeding which before the appointed day has been begun by or is pending before any coroner or any justice in relation to any matter arising in or concerning the added areas or any part thereof may be carried on continued and completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

(2) The added areas shall cease to form part of any petty sessional division or coroner's division of the county.

11 & 12 Geo. 6. c. 58. (3) Where immediately before the appointed day a probation order made or having effect as if made under section 3 of the Criminal Justice Act 1948 is in force and the probationer is residing in any part of the added areas the supervising court may if a petty sessional division of the county is named in the order amend the order under paragraph 2 of the First Schedule to that Act as if the probationer had changed his residence and nothing in the proviso to subsection (1) of this section shall be construed in relation to any probation order whenever made as preventing the justices of the peace for the city as the supervising court from dealing with the probationer in pursuance of any power conferred upon them by the said Act of 1948.

Transfer of  
schools to  
Corporation.

**20.**—(1) All property held immediately before the appointed day by the county council as local education authority and situate within the added areas and all rights and liabilities



whether vested or contingent to which the county council were entitled or subject immediately before the appointed day by reason of the exercise in any part of the added areas of their functions as local education authority shall by virtue of this Act be transferred to the Corporation as local education authority.

(2) All teachers and other officers who immediately before the appointed day were employed by the county council for the purpose of the exercise exclusively in any part of the added areas of their functions as local education authority shall by virtue of this Act be transferred to and become teachers or other officers as the case may be employed by the Corporation as local education authority and shall be employed by the Corporation upon the terms and conditions upon which they were employed by the county council immediately before the appointed day.

(3) Subject to the provisions of the Education Acts 1944 to 1948 every school in the added areas which immediately before the appointed day was maintained by the county council as local education authority shall be maintained by the Corporation as local education authority in like manner as they were maintained immediately before the appointed day.

(4) An adjustment shall be made for the purposes of this section under and in accordance with the provisions of this Act.

**21.**—(1) Every manager of any school in the added areas who School was appointed by the county council or by any parish council managers. shall vacate office on the appointed day.

(2) Any rules of management made by the county council as local education authority and applying to any school transferred to the Corporation under this Act shall cease to apply to that school.

**22.** In relation to any child who is on the appointed day in the care of the county council under section 1 of the Children Act 1948 and who when he was received into their care was ordinarily resident in the added areas subsection (4) of the said section 1 shall without prejudice to the powers of the Secretary of State to determine any questions arising under the subsection as to ordinary residence have effect as if the child being on the appointed day resident in the city had on that day been received into the care of the county council under the said section 1. Transfer of duties under section 1 of Children Act 1948. 11 & 12 Geo. 6. c. 43.

**23.**—(1) The Minister may by order made before the appointed day make such provision as seems to him expedient for all or any of the following matters:—

(a) for providing that the names of medical practitioners who immediately before the appointed day are providing general medical services in the added areas



9 & 10 Geo. 6.  
c. 81.

under the National Health Service Act 1946 shall be included in the medical list of the executive council of the city ;

- (b) for providing that the alteration of the boundaries of the city authorised by this Act shall not affect any services under Part IV of the said Act of 1946 which have been commenced but not completed before the appointed day ;
- (c) for providing for the transfer to the executive council of the city of any property rights or liabilities of the executive council of the county which relates exclusively to the added areas ;
- (d) for the making of financial adjustments between the said executive councils ;
- (e) for providing that the executive council of the county shall continue to act as the executive council for the added areas until such date as may be specified in the order not being later than the thirty-first day of December nineteen hundred and fifty-one ; and
- (f) for any supplementary or incidental matters.

(2) Any order made under this section may be revoked or varied by a subsequent order of the Minister made before or after the appointed day.

(3) Subject to any order made under this section the persons who immediately before the appointed day are members of the respective executive councils of the county and the city shall be deemed to have been appointed as and shall be members of the respective executive councils of the county and the city as altered by this Act.

*Local Acts adoptive Acts byelaws &c.*

Local Acts.

**24.**—(1) Subject to the provisions of this Act the unrepealed provisions of the local Acts or any other local Act or Provisional Order affecting the existing city or the Corporation thereof as the same respectively are in force within the existing city immediately before the appointed day shall extend and apply to the city and any reference in any such Act or Order to the existing city and the Corporation thereof shall be deemed to refer to the city and the Corporation thereof :

50 Vict. Sess. 2.  
c. xix.      Provided that section 110 (Cost of flagging &c. footways recoverable by Corporation) of the Carlisle Corporation Act 1887 shall not apply within the added areas.

(2) The provisions of any protective section for the benefit of the county council or the rural council or of any of the parish councils or the predecessors of any of such councils contained



in any local Act confirmation Act or Provisional Order by whomsoever obtained so far as they relate to or affect any part of the added areas shall enure on and after the appointed day to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to any of such councils or their predecessors as the case may be.

(3) The provisions of the Cumberland County Council Act 1948 shall cease to apply to the added areas.

**25.**—(1) Subject to the provisions of subsection (3) of this Adoptive section the provisions of any public general Act in force through- Acts.  
out the existing city by virtue of an adoption by the council or their predecessors and any order in force under such Act throughout the existing city shall apply to the city as extended by this Act.

(2) Subject to the provisions of this section the provisions of any public general Act in force in the added areas by virtue of an adoption by the rural council or their predecessors and any order in force under such Act in the added areas shall cease to have effect in relation to such areas.

(3) This section shall not apply to any order made under 7 Edw. 7.  
the Public Health Acts Amendment Act 1907 or the Public c. 53.  
Health Act 1925. 15 & 16 Geo. 5.  
c. 71.

**26.** Any order made under the Shop Hours Act 1904 or Orders under  
under the Shops Acts 1912 to 1936 which is in force imme- Shop Hours  
diately before the appointed day in the existing city shall extend Act 1904 and  
to the added areas and be revocable in the manner provided Shops Acts  
by those Acts and the regulations made thereunder and any 1912 to 1936.  
order under those Acts which is then in force in the county shall 4 Edw. 7.  
cease to extend to the added areas. c. 31.

**27.** Any order under the Wild Birds Protection Acts 1880 Orders under  
to 1939 which is in force immediately before the appointed day Wild Birds  
in the existing city shall extend to the added areas and any order Protection  
under those Acts which is then in force in the county shall cease Acts.  
to extend to the added areas.

**28.** Subject to any order which the Minister or the Secretary Orders under  
of State may make on or after the appointed day the following Public Health  
provisions shall have effect as regards orders under the Public Acts Amend-  
Health Acts Amendment Act 1907 or the Public Health Act ment Act  
1925:— 1907 or  
Public Health  
Act 1925.

(1) The provisions of any order made before the appointed  
day and declaring to be in force throughout the existing  
city any parts or sections of either of those Acts shall  
have effect as if any reference in that order to the



existing city extended and applied to the city and as if such parts or sections were accordingly declared to be in force within the city :

- (2) The provisions of any other order made under either of those Acts which is in force immediately before the appointed day throughout the existing city shall extend and apply to the added areas :
- (3) The provisions of any order made before the appointed day and declaring to be in force within any part of the added areas any parts or sections of either of those Acts shall cease to apply to any such part of the added areas and the parts or sections declared by any such order to be in force shall (save as in this section provided) cease to be in force within any such part of the added areas but this section shall not prejudice or affect any proceedings which are pending on the appointed day.

Sunday  
Entertain-  
ments Act  
1932.  
22 & 23 Geo. 5.  
c. 51.

**29.** The Sunday Entertainments Act 1932 shall from the appointed day apply to the city as before that day it applied to the existing city.

Byelaws  
regulations  
and scales  
of charges.

**30.—**(1) All byelaws in force within the existing city or within any part of the added areas immediately before the appointed day shall—

- (a) if made before the first day of January nineteen hundred and forty continue to apply to the existing city or to such part of the added areas as the case may be for one year after the appointed day (unless previously repealed or altered by the Corporation) but shall on the expiry of one year after the appointed day cease to be in force within any part of the city ;
- (b) if made on or after the first day of January nineteen hundred and forty continue to apply to the existing city or to such part of the added areas as the case may be until repealed or altered by the Corporation.

(2) Notwithstanding the foregoing provisions of this section any byelaw in force in the existing city may by a byelaw be extended with or without modification to the added areas.

(3) In their application to the added areas any byelaws continued in force by the foregoing provisions of this section shall have effect as if they had been made by the Corporation and as if the added areas or the part thereof to which such byelaws apply were referred to therein instead of the area to which they originally applied.



(4) Any proceedings which if this Act had not been passed might have been taken for any offence against any byelaw alleged to have been committed before the appointed day within the added areas may be taken by the Corporation.

(5) In this section "byelaws" includes any regulation scale of charges list of tolls or table of fees or payments.

**31.**—(1) The area of the Corporation as burial board for the Burial board. existing city shall be altered by the inclusion in such area of the added areas and the Corporation shall have within such area as so altered to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906.

(2) Any table of fees and charges in force in respect of any existing burial ground maintained by the Corporation shall extend and apply to inhabitants of the burial area of the Corporation as altered by this section as such table applies to inhabitants of the existing burial area of the Corporation.

(3) Except as by this Act expressly provided nothing therein shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired before the appointed day or prejudicially affect any right privilege or authority which immediately before the appointed day is exercisable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

#### *Rating and valuation*

**32.**—(1) Notwithstanding the alteration of areas effected by this Act all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Act had not been passed. Contribution orders precepts and arrears of rates.

(2) All rates not collected immediately before the appointed day in respect of hereditaments within the added areas shall be collected and recovered as if this Act had not been passed.

(3) Any rates or sums so collected or recovered shall be a matter for adjustment under this Act.

**33.**—(1) For the purposes of this section "local authority" means the county council the rural council and the parish council of any existing parish any part of which is comprised within the added areas. Differential rating.

(2) The Minister may if he thinks fit on the application of the local authority of any part of the added areas (such application to be made in writing before the expiration of a period of two months after the passing of this Act) order that for the period or periods (not exceeding five years) stated in the order



the total amount in the pound of the general rate to be made and levied upon rateable hereditaments existing immediately before the appointed day situate in any part of the added areas shall be less than the total amount in the pound of the general rate to be made and levied upon hereditaments within the area of the existing city by such sum or sums (if any) as may seem equitable to him after considering any representations which may be made to him by the Corporation.

Deduction in  
ascertaining  
rateable value  
of certain  
properties.  
15 & 16 Geo. 5.  
c. 90.

**34.** For the purposes of all valuation lists of the city under the Rating and Valuation Act 1925 the deduction to be made under paragraph (c) of subsection (1) of section 22 of that Act from the net annual value of such rateable hereditaments within the added areas as are included in class (3) of the hereditaments specified in column (1) of Part II of the Second Schedule to that Act shall be the same as the deduction made from the net annual value of similar hereditaments in the existing city.

Rating area  
and valuation  
lists.

**35.—(1)** The added areas shall be deemed to form part of the rating area of the city.

(2) The valuation list of the existing city and the portions of the valuation list of the rural district which relate to hereditaments within the added areas modified as may be necessary to give effect to the provisions of section 34 (Deduction in ascertaining rateable value of certain properties) of this Act shall together form the valuation list of the city as from the appointed day.

(3) The remaining portion of the valuation list of the rural district shall be the valuation list of that district as from the appointed day.

#### *Officers*

Officers of  
Corporation  
continued.

**36.** The town clerk and all other officers of the Corporation of the existing city who hold office immediately before the appointed day shall continue to be the town clerk and officers of the Corporation of the city and shall hold their offices by the same tenure as before that day.

City auditors.

**37.** The auditors of the existing city appointed under section 239 of the Act of 1933 who are in office on the appointed day shall continue in office and shall be the city auditors until their successors are appointed.

#### *Supplementary provisions*

Parish books  
and  
documents.

**38.—(1)** All public books writings and papers of any of the existing parishes relating exclusively to any part of the added areas and all documents relating exclusively to any part of the added areas and directed by law to be kept with the public books writings and papers of such parish (except any



book or document relating to the affairs of the church or to ecclesiastical charities or to a parochial non-ecclesiastical charity) and all plans papers and writings of the county council and the rural council relating exclusively to any part of the added areas shall be deposited in such custody as the Corporation may direct.

(2) Any ratepayer of any of the existing parishes shall at all times have the same right of inspection and of making extracts from the public books writings papers and documents referred to in this section as he would have had if this Act had not been passed.

**39.**—(1) For the purposes of the register of local government electors of the city to be published in the year nineteen hundred and fifty-one and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have formed part of the city as from the qualifying date for elections for which that register is used. Provisions as to register of electors.

(2) If the register of local government electors for any electoral area affected by this Act is not so framed as to show the persons entitled to vote at an election to be held for an electoral area—

(a) the town clerk in the case of an election for any electoral area within the city ; and

(b) the registration officer of the constituency or registration area in the case of an election for any electoral area outside the city ;

shall make such alteration or rearrangement of the register as may be necessary for the purposes of such election.

(3) The additional expense incurred by the town clerk or the said registration officer which may be solely attributable to an alteration or rearrangement of the register of electors under this section shall be defrayed by the Corporation.

(4) Where in the opinion of the Secretary of State the circumstances so require he may make such order as appears to him to be necessary or desirable to give effect to the provisions of this section and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

**40.** For the purpose of summoning jurors and of jury service any parish affected by this Act shall be deemed to continue unaltered until a new jurors' book for the parish as altered comes into force. Jury service.

**41.**—(1) The local registrars for the county and the rural district respectively under the Land Charges Act 1925 and the rules made thereunder shall within one month after the appointed day supply to the local registrar for the city an office copy of every Local land charges registers.  
15 Geo. 5.  
c. 22.



entry in the local land charges register relating to any land situate within the added areas and shall be paid by the Corporation in respect thereof such fees as are prescribed by the said rules.

(2) The local registrar for the city shall within one month after the receipt of the office copy mentioned in subsection (1) of this section enter the same with any necessary modifications in the appropriate part of the local land charges register of the city.

(3) Until the entries are made as aforesaid or until the expiration of two months from the appointed day whichever be the earlier day the following provisions shall have effect in respect of all land within the added areas:—

- (a) The local registrar for the city shall give notice to any person desiring to make a personal search that an additional search should be made in the register for the rural district and in the register for the county;
- (b) Where application is made for an official search the local registrar for the city shall issue free of charge a certificate of official search in the register of the city and shall forward to the local registrar for the rural district the application received by him together with the fees paid in respect thereof and shall also forward to the local registrar for the county a copy of the application;
- (c) The local registrar for the rural district and the local registrar for the county shall permit and make such searches and furnish such office copies and certificates as they would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this Act had not been passed;
- (d) The fees in respect of searches permitted or made and in respect of certificates furnished by the local registrar for the county in pursuance of the provisions of paragraph (c) of this subsection shall be paid by the Corporation;
- (e) Where an entry of a local land charge which has been duly made in the local land charges register of the county or of the rural district is required by this section to be transferred from the register of such county or district to the register of the city such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register of the city.

Town  
planning.

42.—(1) As from the passing of this Act the Corporation shall be entitled at all reasonable times to inspect and take copies of all plans or documents relating to any land within the added



areas which are in the possession or under the control of the county council or the rural council for the purposes of or in connection with the Town and Country Planning Act 1947 and the county council and the rural council shall supply to the Corporation such information and shall afford to them such assistance for the purposes of or in connection with the said Act as the Corporation may reasonably require. 10 & 11 Geo. 6.  
c. 51.

(2) An office copy of every entry in the register relating to any land within the added areas kept by the county council under section 14 of the said Act of 1947 shall within one month after the appointed day be supplied to the town clerk by the clerk of the county council or the clerk of the rural council having the custody of that part of the register in which the entry appears as the case may be.

(3) The town clerk shall within one month after the receipt of the office copy mentioned in subsection (2) of this section enter the same with any necessary modifications in the register kept by the Corporation under section 14 of the said Act of 1947.

(4) Any application for planning permission or for any consent or approval under the said Act of 1947 or for a determination under section 17 of that Act made to the county council or the rural council on their behalf before the appointed day and not determined before that day shall so far as it relates to land within the added areas be treated as a like application made to the Corporation and shall be treated as having been so made on the appointed day:

Provided that it shall not be necessary for the Corporation to consult with any authority person or body with whom consultation has already taken place in relation to that application.

(5) Any order agreement permission approval determination consent notice proceeding or decision made taken or given by the county council as local planning authority under the said Act of 1947 or having effect as if so made taken or given and in force immediately before the appointed day shall so far as it relates to any land within the added areas have effect as if it had been made taken or given by the Corporation as such authority in respect of that land.

(6) Any direction approval consent or decision given by the Minister of Town and Country Planning or the Minister of Transport under or in pursuance of the said Act of 1947 or any enactment thereby repealed affecting the county council as local planning authority and in force immediately before the appointed day shall so far as it relates to any land within the added areas have effect as if the same had been given to the Corporation as local planning authority.



Entries in  
registers.

**43.**—(1) The clerk of the county council and the clerk of the rural council shall as soon as may be after the passing of this Act and in any case before the appointed day send to the town clerk a copy of every entry in any register of the county council or of the rural council as the case may be under any enactment rule order or regulation for the time being in force which relates to any property matter or thing in or which otherwise affects the added areas and the town clerk shall include in the appropriate register of the Corporation the particulars respectively furnished by the clerk of the county council and by the clerk of the rural council.

(2) Subsection (1) of this section shall not extend to any matter for which provision is made in section 41 (Local land charges registers) or section 42 (Town planning) of this Act.

As to registra-  
tion districts.

19 Geo. 5.  
c. 17.

Extension of  
limits for  
supply of  
water.

**44.** Nothing in this Act shall affect the area of any existing registration district or sub-district without prejudice however to the exercise of the powers contained in sections 24 and 131 of the Local Government Act 1929 as to the alteration thereof.

**45.**—(1) As from the appointed day the limits of the Corporation for the supply of water shall include such parts of the added areas as are not immediately before the appointed day comprised in those limits.

(2) The Corporation shall have and may exercise within their limits for the supply of water as extended by this Act all the like powers privileges and authorities for and in relation to the supply of water and shall be subject to all and the like duties liabilities and obligations in respect thereof as they may exercise and are subject to within their limits for the supply of water as existing immediately before the appointed day.

Transfer of  
trunk roads.

1 Edw. 8. &  
1 Geo. 6. c. 5.

9 & 10 Geo. 6.  
c. 30.

Financial  
adjustments.

**46.** As from the appointed day the section of the Carlisle—Glasgow trunk road (A.74) and the section of the Edinburgh—Carlisle trunk road (A.7) within the added part of Kingmoor the section of the London—Carlisle trunk road (A.6) within the added part of Saint Cuthbert Without and the section of the Workington—Aspatria—Carlisle trunk road (A.595) within the added part of Cummersdale shall cease to be trunk roads and the Corporation shall be the highway authority therefor and the Trunk Roads Act 1936 shall apply in relation thereto as it applies in relation to a road ceasing to be a trunk road under that Act without prejudice however to any future exercise of the powers of the Minister of Transport under section 1 of the Trunk Roads Act 1946.

**47.**—(1) Where in consequence of any alteration of areas or authorities made by this Act any adjustment of any property income debts liabilities or expenses so far as they are affected by



the alteration is required an adjustment shall be made between the councils or other authorities affected under and in accordance with sections 151 and 152 of the Act of 1933.

(2) This section shall not extend to any matter for the adjustment of which provision is made in any other Act.

**48.**—(1) No alteration effected by this Act shall affect any notices given or proceedings taken by or on behalf of the county council under the Private Street Works Act 1892 in relation to any street situate within the added areas or any part thereof but such proceedings may be continued and completed by such council in accordance with the provisions of the said Act as if this Act had not been passed. Saving for private street works.  
55 & 56 Vict.  
c. 57.

(2) Where before the appointed day any works under section 150 of the Public Health Act 1875 or the Private Street Works Act 1892 have been completed in a street situate within the added areas or any part thereof no alteration effected by this Act shall affect the liability of any owner to defray any sum which may be or has been apportioned upon him in respect of the cost of the works and any such sum shall be recoverable by the authority who would have been entitled to recover the same if this Act had not been passed and in the like manner. 38 & 39 Vict.  
c. 55.

**49.** Any alderman or councillor who is to continue in office after the appointed day shall not during his term of office current immediately before that day be deemed to lose his qualification for being an alderman or councillor by reason of the alterations of area made by this Act. Saving for qualification of aldermen and councillors.

**50.**—(1) No alteration effected by this Act in the area of any local or other authority shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority or any contract deed bond agreement or other instrument or any licence permission or exemption (subsisting immediately before the appointed day) entered into made issued or granted by any such authority or their predecessors: Savings for actions contracts licences &c.

Provided that—

- (a) any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority in relation exclusively to any part of the added areas may be continued prosecuted and enforced by or against the Corporation; and
- (b) all contracts deeds bonds agreements and other instruments or any licence permission or exemption (subsisting immediately before the appointed day) entered



into made issued or granted by any such authority (or their predecessors) in relation exclusively to any part of the added areas shall continue in force as fully and effectually as if instead of such authority (or their predecessors) the Corporation had been a party thereto or had issued or granted the licence permission or exemption as the case may be.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Act.

Other saving  
provisions.

**51.** Nothing in this Act shall—

(a) be construed as restricting any power under the Local Government Act 1929 or the Act of 1933 of altering any of the areas or the constitution of any authority or committee ;

12 & 13 Geo. 6.  
c. 68.

(b) alter the area of any constituency or affect the powers of the county council under section 11 of the Representation of the People Act 1949 ;

(c) alter the area of any ecclesiastical parish or prejudice vary or affect any power right interest or jurisdiction in over or in connection with any charitable endowment ;

11 & 12 Geo. 6.  
c. 26.

(d) (save as in this Act expressly provided) affect the provisions of the Rating and Valuation Acts 1925 to 1940 or Parts III or IV of the Local Government Act 1948 ;

(e) affect land tax ; or

26 Geo. 5.  
& 1 Edw. 8.  
c. 49.

(f) affect any limitation imposed on the duration of any byelaw by the Public Health Act 1936.

### *Finance*

Power to  
borrow.

**52.**—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums requisite for those purposes and shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the second column of the said table (namely):—

| Purpose                                                                                                                | Period for repayment                                  |
|------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------|
| (a) The payment of any sums to the county council or to any other authority or body under or in pursuance of this Act. | Forty-five years from the date or dates of borrowing. |
| (b) The payment of the costs charges and expenses of this Act.                                                         | Five years from the passing of this Act.              |



(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

53. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury.  
8 & 9 Geo. 6.  
c. 18.  
9 & 10 Geo. 6.  
c. 58.

54. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him by or the giving of any consents under this Act and section 290 of the Act of 1933 shall apply accordingly. Inquiries by Minister.

55. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

56. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation. Costs of Act.



## SCHEDULE

## PART I LOCAL ACTS

| Session and chapter       | Title or short title                                                                                                                                                                                                                                                                 |
|---------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 44 Geo. 3. c. lviii.      | An Act for lighting the streets lanes and other public passages and places within the city of Carlisle in the county of Cumberland and the suburbs of the said city for paving the foot-paths of the streets of the said city and suburbs and for otherwise improving the said city. |
| 7 & 8 Geo. 4. c. lxxxvi.  | An Act for watching regulating and improving the city of Carlisle and the suburbs thereof.                                                                                                                                                                                           |
| 36 & 37 Vict. c. clxxiii. | The Carlisle Improvement Act 1873.                                                                                                                                                                                                                                                   |
| 50 Vict. Sess. 2. c. xix. | The Carlisle Corporation Act 1887.                                                                                                                                                                                                                                                   |
| 61 & 62 Vict. c. ccxxv.   | The Carlisle Corporation (Water) Act 1898.                                                                                                                                                                                                                                           |
| 4 Edw. 7. c. ccxlv.       | The Carlisle Corporation Act 1904.                                                                                                                                                                                                                                                   |
| 6 Edw. 7. c. xii.         | The Carlisle Corporation Act 1906.                                                                                                                                                                                                                                                   |

## PART II ORDERS

| Session and chapter               | Short title                                                                     | Order thereby confirmed                                                                        |
|-----------------------------------|---------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| 13 & 14 Vict. c. cviii.           | The Public Health Supplemental Act 1850 (No. 3).                                | The Order of the General Board of Health relating to Carlisle dated the 31st day of July 1850. |
| 10 Edw. 7. & 1 Geo. 5. c. lxxxvi. | The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1910.  | The Carlisle Order 1910.                                                                       |
| 2 & 3 Geo. 5. c. cxxxvii.         | The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1912. | The Carlisle (Extension) Order 1912.                                                           |
| 3 & 4 Geo. 5. c. cxxxiv.          | The Local Government Board's Provisional Orders Confirmation (No. 10) Act 1913. | County Borough of Carlisle Order 1913.                                                         |
| 6 & 7 Geo. 5. c. xxxv.            | The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1916.  | The Carlisle Order 1916.                                                                       |
| 7 & 8 Geo. 5. c. lvii.            | The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1917.  | The Carlisle Order 1917.                                                                       |

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# Faculty of Homœopathy Act, 1950

14 GEO. 6 Ch. xx

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## ARRANGEMENT OF SECTIONS

### Section

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10. Dissolution of existing Faculty.
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16. Byelaws.
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19. Auditing of accounts.
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Schedule—First byelaws of the Faculty.